

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SUMMONS

NADEGE BENOIT,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MATTHEW GIUNTA, Tax No. 947033, POLICE
OFFICER CARMINE MALANDRO, Tax No. 970676,
POLICE OFFICER NOBIN SAMU, Tax No. 958046,
POLICE OFFICER JOSE SINCHI, Tax No. 970360,
LIEUTENANT FELIKS LADYZHENSKIY, Tax No.
932872, POLICE OFFICER JEFFERY FARREL Tax No.
950395, and POLICE OFFICERS JOHN DOES #s 1-10
(names and numbers of whom are unknown at present),

Plaintiff designates KINGS
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 23, 2024

Yours, etc.

David M. Hazan
JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER MATTHEW GIUNTA, Tax No. 947033, 62nd Pct.
POLICE OFFICER CARMINE MALANDRO, Tax No. 970676, 62nd Pct.
POLICE OFFICER NOBIN SAMU, Tax No. 958046, 62nd Pct.
POLICE OFFICER JOSE SINCHI, Tax No. 970360, 62nd Pct.
LIEUTENANT FELIKS LADYZHENSKIY, TAX NO. 932872, INTERNAL AFFAIRS
POLICE OFFICER JEFFERY FARREL TAX NO. 950395, 83RD PCT.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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NADEGE BENOIT,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MATTHEW GIUNTA, Tax No. 947033, POLICE
OFFICER CARMINE MALANDRO, Tax No. 970676,
POLICE OFFICER NOBIN SAMU, Tax No. 958046,
POLICE OFFICER JOSE SINCHI, Tax No. 970360,
LIEUTENANT FELIKS LADYZHENSKIY, Tax No.
932872, POLICE OFFICER JEFFERY FARREL Tax No.
950395, and POLICE OFFICERS JOHN DOES #s 1-10
(names and numbers of whom are unknown at present),

Defendants.

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Plaintiff NADEGE BENOIT, by her attorneys, Jacobs & Hazan, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on August 23, 2021, at approximately 3:30 pm plaintiff was lawfully present inside of her home located at located at 20 Bay 37th Street, Apt. 4, Brooklyn, NY 11214 at which time the individually named defendants unlawfully handcuffed, and falsely arrested plaintiff. The defendants later maliciously prosecuted plaintiff and denied plaintiff the right to due process when they initiated a criminal prosecution against plaintiff without probable cause and based upon false, misleading, and incomplete evidence provided to the District Attorney's Office by defendants. Plaintiff was transported to Central Booking and was arraigned in Kings County Criminal Court on August 24, 2021, approximately 24 hours after she was initially detained. At arraignment, the Court issued an Order of Protection Against Plaintiff wherein she was not permitted to be near her mother, who lived in plaintiff's home at the time. Therefore, plaintiff was not permitted to live in her own home for a period of time, and she was forced to spend money paying to stay in hotel rooms until her

mother moved out of her home months later. Furthermore, based upon the charges the defendants brought against plaintiff, ACS initiated an investigation into whether plaintiff's children were safe living with plaintiff, and plaintiff's children were temporarily taken away from plaintiff for approximately 5 days because plaintiff was wrongfully charged with endangering the welfare of her children. At the time plaintiff was arrested and a criminal prosecution was initiated against her, plaintiff worked full time as a home health aide. Plaintiff's license was suspended by the State of New York during the period of time the criminal charges were pending against plaintiff. Therefore, plaintiff could not work as a home health aide from August through December 2021 because her license was suspended during that period of time as a result of this incident and the criminal prosecution. During that period of time claimant did not have any income. The false arrest and malicious prosecution of plaintiff impacted a variety of areas of her life and caused her to suffer extreme anxiety and emotional distress because she was not permitted to live in her own home, was forced to pay for hotel rooms throughout the entire time period when her mother continued to live at her home, she could not work, and her children were taken away from her. Plaintiff received professional counseling to help her deal with the extreme emotional distress and she was prescribed medication to help her deal with the anxiety she suffered through. Plaintiff was hospitalized at Kings County Hospital because of her anxiety and depression resulting from the false arrest and malicious prosecution initiated by defendants. Plaintiff was arraigned in Kings County Criminal Court on August 24, 2021, and she was charged with committing several crimes she did not commit and that the police officers lacked a factual basis to accuse her of committing, including but not limited to Menacing (PL 120.14), Endangering the Welfare of a Child (PL 260.10), Criminal Possession of a Weapon (PL 265.01), Attempted Assault (PL 110/120.00), and Harassment (PL 240.26). Thereafter the criminal prosecution was maliciously continued by defendants without probable cause for approximately three months and plaintiff made approximately 3 Court appearances in Kings County Criminal Court until all charges terminated in plaintiff's favor and were dismissed and sealed in their entirety on or about November 22, 2021. The officers that did not physically touch or interact with plaintiff but observed their fellow officers violating plaintiff's rights and failed to prevent and/or stop their fellow officers from violating plaintiff's rights are liable to plaintiff for their failure to intervene. Plaintiff was deprived of her Constitutional and common law rights when the individual defendants unlawfully searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff NADEGE BENOIT is a resident of the state of New York.
3. Defendant POLICE OFFICER MATTHEW GIUNTA, Tax No. 947033, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant POLICE OFFICER MATTHEW GIUNTA, Tax No. 947033, was at all times relevant herein, assigned to the 62nd Precinct..

5. Defendant POLICE OFFICER MATTHEW GIUNTA, Tax No. 947033, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER CARMINE MALANDRO, Tax No. 970676, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER CARMINE MALANDRO, Tax No. 970676, was at all times relevant herein, assigned to the 62nd Precinct.

8. Defendant POLICE OFFICER CARMINE MALANDRO, Tax No. 970676, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER NOBIN SAMU, Tax No. 958046, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER NOBIN SAMU, Tax No. 958046, was at all times relevant herein, assigned to the 62nd Precinct.

11. Defendant POLICE OFFICER NOBIN SAMU, Tax No. 958046, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER JOSE SINCHI, Tax No. 970360 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER JOSE SINCHI, Tax No. 970360, was at all times relevant herein, assigned to the 62nd Precinct..

14. Defendant POLICE OFFICER JOSE SINCHI, Tax No. 970360, is being sued in his individual and official capacity.

15. Defendant LIEUTENANT FELIKS LADYZHENSKIY, Tax No. 932872, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant LIEUTENANT FELIKS LADYZHENSKIY, Tax No. 932872, was at all times relevant herein, assigned to the 62nd Precinct and is presently assigned to Internal Affairs.

17. Defendant LIEUTENANT FELIKS LADYZHENSKIY, Tax No. 932872, is being sued in his individual and official capacity.

18. Defendant POLICE OFFICER JEFFERY FARREL Tax No. 950395, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant POLICE OFFICER JEFFERY FARREL Tax No. 950395, was at all times relevant herein, assigned to the 62nd Precinct, and he is presently assigned to the 83rd Precinct.

20. Defendant POLICE OFFICER JEFFERY FARREL Tax No. 950395, is being sued in his individual and official capacity

21. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On August 23, 2021, at approximately 3:30 pm plaintiff was lawfully present inside of her home located at located at 20 Bay 37th Street, Apt. 4, Brooklyn, NY 11214 at which time the individually named defendants unlawfully handcuffed, and falsely arrested plaintiff. The defendants later maliciously prosecuted plaintiff and denied plaintiff the right to due process when they initiated a criminal prosecution against plaintiff without probable cause and based upon false, misleading, and incomplete evidence provided to the District Attorney's Office by defendants..

28. By way of background, at the time of the underlying incident in this case plaintiff's mother lived in plaintiff's apartment with plaintiff, plaintiff's 4 children and plaintiff's significant other.

29. Plaintiff permitted her mother to live with her family because her mother was experiencing difficult times in her life.

30. Plaintiff's mother's home burned down, and she became essentially homeless, her hair salon went out of business, her husband passed away, and her son was murdered, all over a relatively short period of time.

31. The series of bad events that occurred in plaintiff's mother's life caused plaintiff's mother to become very depressed.

32. When plaintiff's mother became depressed she began hoarding food and leaving it around their home to rot, which caused many arguments between plaintiff and her mother.

33. After plaintiff and her mother got into several arguments, plaintiff's mother began filing false police reports against plaintiff each time they got into an argument.

34. Plaintiff was aware that her mother repeatedly made false police reports against plaintiff and other family members; therefore, plaintiff installed surveillance cameras in her apartment to protect her family against any possible false allegations made by her mother.

35. Plaintiff's son has ADHD, is hyperactive and misbehaves.

36. Plaintiff repeatedly asked her mother not to give her children candy or sweets because the sugar makes them act out.

37. Plaintiff's mother ignored plaintiff and repeatedly gave the children candy filled with sugar.

38. On August 23, 2021, plaintiff's mother repeatedly gave plaintiff's children candy, even though plaintiff asked her not to.

39. At approximately 12:00 pm on August 23, 2021, plaintiff called the police, and when they arrived at her apartment she asked them to speak with her mother about how she can't give the children candy, so that an argument did not escalate between plaintiff and her mother.

40. However, the police officers declined to speak with plaintiff's mother, and they left the location.

41. At approximately 3:15 pm on August 23, 2021 plaintiff was lawfully present inside of her apartment located at 20 Bay 37th Street, Apt. 4, Brooklyn, NY 11214 when her mother gave the children candy again.

42. Plaintiff was brushing her hair in the bathroom when her mother gave the children candy again, and plaintiff began arguing with her mother about the fact that she gave the children candy.

43. At no time relevant herein did plaintiff threaten to harm her mother in any way, nor did plaintiff possess a knife.

44. After plaintiff and her mother stopped arguing,, plaintiff heard her mother call the police and falsely reported that plaintiff threatened her life and pointed a knife at her.

45. Upon hearing her mother make the false report, plaintiff called the police to report that her mother made a false report, and plaintiff explained that she had the entire incident on surveillance footage and could prove that the allegation her mother made was false.

46. The individually named defendant NYPD officers responded to plaintiff's home.

47. When the officers responded to plaintiff's home, Plaintiff showed the officers the video footage from the time and location of where plaintiff's mother accused plaintiff of threatening her with a knife.

48. After viewing the video footage, the officers acknowledged that plaintiff was never holding a knife and plaintiff only had a hairbrush in her hand when she spoke with her mother.

49. However, even though the officer acknowledged that based upon the video footage plaintiff's mother's allegations that plaintiff threatened her with a knife were false, the officer asked plaintiff to step outside of her apartment with him..

50. Plaintiff stepped outside of her apartment with the officer, at which time the officer unlawfully handcuffed plaintiff, and falsely arrested and imprisoned her without probable cause or legal justification.

51. . At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the police officers possess objective facts to establish probable cause to believe she committed a crime.

52. Plaintiff was placed in a police vehicle and transported to the 62nd Precinct, whereat she was unlawfully searched, fingerprinted, photographed and detained in a holding cell for many hours.

53. The officers provided the DA's Office with false, misleading and incomplete evidence to justify why they arrested plaintiff and charged her with several crimes.

54. Plaintiff was transported to Central Booking and was arraigned in Kings County Criminal Court on August 24, 2021, approximately 24 hours after she was initially detained.

55. Defendants maliciously prosecuted plaintiff and violated her right to due process/ right to a fair trial.

56. Defendants forwarded false, misleading, and/or incomplete information and/or evidence to the Kings County District Attorney's Office as an explanation for why they allegedly had probable cause to arrest and prosecute plaintiff, and the false allegations formed the basis for the criminal prosecution that was initiated against plaintiff.

57. At no time relevant herein, did the police officers have probable cause or any other legal justification to believe plaintiff committed any crime.

58. Further, the NYPD officers signed and executed a criminal court complaint that contained false, misleading, and incomplete information and/or evidence under oath and under the risk of a penalty of perjury.

59. Plaintiff was arraigned in Kings County Criminal Court on August 24, 2021, and she was charged with committing several crimes she did not commit and that the police officers had no basis to accuse her of committing, including but not limited to Menacing (PL 120.14), Endangering the Welfare of a Child (PL 260.10), Criminal Possession of a Weapon (PL 265.01), Attempted Assault (PL 110/120.00), and Harassment (PL 240.26).

60. Thereafter the prosecution was maliciously continued by said police officers without probable cause for approximately three months and plaintiff made approximately 3 Court appearances in Kings County Criminal Court until all charges were terminated in plaintiffs favor and were dismissed and sealed in their entirety on or about November 22, 2021.

61. As a result of the malicious prosecution, denial of due process/ right to a fair trial against plaintiff, plaintiff experienced economic damages, physical injury, personal, pain and suffering, fear, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

62. She was charged with several crimes the officers lacked probable cause to accuse her of committing, including but not limited to Menacing in the Second Degree, Endangering the Welfare of a Child, Criminal Possession of a Weapon in the Fourth Degree, Attempted Assault in the Third Degree, Menacing in the Third Degree and Harassment in the Second Degree.

63. Additionally, the Court issued an Order of Protection Against Plaintiff wherein she was not permitted to be near her mother.

64. Therefore, plaintiff was not permitted to live in her home for a period of time, and she was forced to spend money purchasing hotel rooms until her mother moved out of her home months later.

65. Furthermore, ACS initiated an investigation into whether plaintiff's children were safe living with plaintiff, and plaintiff's children were temporarily taken away from plaintiff for approximately 5 days because she was wrongfully charged with endangering the welfare of her children

66. Plaintiff worked as a home health aide and her license was suspended during the period of time the criminal charges were pending against plaintiff.

67. Therefore, she could not work from August through December because her license was suspended during that period of time as a result of this incident.

68. Plaintiff suffered from extreme emotional distress because she was not permitted to live in her home, was forced to pay for hotel rooms, she could not work, and her children were taken away from her.

69. Plaintiff received professional counseling to help her deal with the extreme emotional distress and she was prescribed medication to help her deal with the anxiety she suffered through.

70. Plaintiff was hospitalized at Kings County Hospital because of her anxiety and depression resulting from the false arrest and malicious prosecution.

71. The officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights and failed to prevent and/or stop them from violating plaintiff's rights are liable to plaintiff for their failure to intervene.

72. At no time relevant herein did plaintiff commit a crime or violate the law, nor did defendants possess objective facts that would lead a reasonable police officer to believe he possessed probable cause to believe plaintiff committed a crime or violated the law.

73. Plaintiff was deprived of her Constitutional and common law rights when the individually named defendants unlawfully searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

74. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficiently punish defendants for the misconduct they previously engaged in.

75. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the

NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

76. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

77. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

78. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

79. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

80. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of due process by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

81. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully caused plaintiff to be unlawfully searched, seized, denied due process, falsely arrested and falsely imprisoned, and maliciously prosecuted, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

83. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

84. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

85. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

88. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath her clothing, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

90. Defendants lacked probable cause to search plaintiff.

91. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

94. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

96. Defendants commenced and continued a criminal proceeding against plaintiff.

97. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

98. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

99. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth

Amendment Rights

Denial of Due Process/ Right to a Fair Trial

101. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 100 with the same force and effect as if fully set forth herein.

102. Defendants, individually and collectively, withheld evidence and/or manufactured false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

103. Defendants filled out false and misleading police reports and forwarded them to the Kings County Criminal Court.

104. In withholding evidence /creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's Constitutional Right to Due Process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

105. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, extreme emotional distress, anxiety, embarrassment and humiliation, lost earnings, and deprivation of her constitutional rights.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

107. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 106 with the same force and effect as if more fully set forth at length herein.

108. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

109. Defendants failed to intervene to prevent the unlawful conduct described herein.

110. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

111. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

112. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

113. Plaintiff was unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and denied the right to due process without an objective factual legal basis to seize, arrest, prosecute, and subject plaintiff to the use of force pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

114. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and subjected to the use of excessive force, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

115. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

116. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and use excessive force against members of the public when there is no factual basis to suspect the individual has committed a crime.

117. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

118. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City

of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

119. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

120. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

121. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

122. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

123. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

124. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff NADEGE BENOIT demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 23, 2024

By: David M. Hazan

DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 23, 2024

David M. Hazan

DAVID M. HAZAN